

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kenny Robinson, Jr.	Team: Team # 3	CCRB Case #: 200706943	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 05/11/2007 1:10 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/11/2008	Precinct: 23		
Date/Time CV Reported Thu, 05/17/2007 11:57 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 05/17/2007 11:57 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Christopher Greiner	30355	930271	023 PCT
2. POM Joseph Curley	28295	928138	023 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM David Gonzalez	00438	932728	023 PCT
2. POM Andres Libreros	09514	935187	023 PCT
3. POM Martin Campos	00817	933671	023 PCT
4. LT Richard Caban	00000	905856	023 PCT
5. POM Christopher Diakonikolas	31734	932595	023 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Christopher Greiner	Abuse: PO Christopher Greiner stopped § 87(2)(b)	A . Unsubstantiated
B . POM Christopher Greiner	Abuse: PO Christopher Greiner frisked § 87(2)(b)	B . Unsubstantiated
C . POM Joseph Curley	Abuse: PO Joseph Curley stopped § 87(2)(b)	C . Unsubstantiated
D . POM Joseph Curley	Abuse: PO Joseph Curley searched § 87(2)(b)	D . Unsubstantiated
E . POM Christopher Greiner	Abuse: PO Christopher Greiner searched § 87(2)(b)	E . Exonerated

Synopsis

§ 87(2)(b) called the CCRB on May 17, 2007, and he reported that on May 11, 2007, at approximately 1:10 AM, he exited his mother's apartment building at § 87(2)(b) in Manhattan and he saw one of his acquaintances, § 87(2)(b). As § 87(2)(b) and § 87(2)(b) were approaching each other, PO Christopher Greiner, identified via the CCRB, exited his vehicle and stopped § 87(2)(b) (allegation A). § 87(2)(b) alleged that PO Greiner then frisked him and asked if he had anything on him (allegation B). § 87(2)(b) stated that an officer, identified via the CCRB as PO Joseph Curley, stopped and searched § 87(2)(b) (allegations C and D). § 87(2)(b) informed PO Greiner that he had a knife in his back pocket. PO Greiner removed the knife and § 87(2)(b) was arrested (allegation E).

§ 87(2)(g)

§ 87(2)(b) it is recommended allegations A - D be closed as **unsubstantiated**. § 87(2)(b) admitted to PO Greiner that he had a knife in his pocket and at which time PO Greiner removed the knife from § 87(2)(b)'s pocket. It is therefore recommended that allegation E be closed as **exonerated**.

Summary of Complaint

§ 87(2)(b) § 87(2)(b) black male, was interviewed at the CCRB on May 22, 2007 (encl. 3C – 3G).

On May 11, 2007, § 87(2)(b) was helping his mother move. § 87(2)(b) was wearing blue jeans, a blue hat and an orange sweatshirt. § 87(2)(b) had a wallet in his pant's pocket, but it did not create a bulge. § 87(2)(b) walked out of his mother's apartment building, which was located at § 87(2)(b) in Manhattan, when he saw an associate, § 87(2)(b) and he motioned to him as a means to greet him. As § 87(2)(b) was walking, he heard a car pull up and stop behind him. A male grabbed § 87(2)(b)'s right hand and guided him to a gate, which was approximately 4 feet in height, and surrounded a small garden. The male was 5'11", in plainclothes, and had an average build. § 87(2)(g) § 87(2)(b). When § 87(2)(b) turned around he noticed that the car that stopped behind him was a black unmarked vehicle.

PO Greiner then instructed § 87(2)(b) to put his hands up, which § 87(2)(b) complied with. PO Greiner pulled his badge out from underneath his shirt and then he immediately put it back. PO Greiner asked § 87(2)(b) where he was going and § 87(2)(b) told PO Greiner that he was going home. PO Greiner then asked § 87(2)(b) if he had any drugs in his possession, which § 87(2)(b) answered in the negative. PO Greiner frisked § 87(2)(b). PO Greiner then asked § 87(2)(b) if he had anything in his possession that he was not suppose to have. § 87(2)(b) initially answered in the negative. A short while later, § 87(2)(b) informed PO Greiner that he had a pocketknife on him. § 87(2)(b) told PO Greiner that the only reason he had the knife in his possession was because he used it on his job earlier that day § 87(2)(b). PO Greiner asked § 87(2)(b) where the knife was located and § 87(2)(b) told PO Greiner that the knife was in the back right pocket of his jeans. PO Greiner then searched all of § 87(2)(b)'s pockets and removed all the contents from them, including the pocketknife. PO Greiner's partner approached PO Greiner and § 87(2)(b). The CCRB investigation revealed that PO Greiner's partner was PO Joseph Curley. PO Greiner informed PO Curley that § 87(2)(b) was found in possession of the pocketknife and PO Greiner asked PO Curley what he wanted to do. PO Curley took the knife and looked at it and he stated, "Lets just arrest him and he will get a DAT."

A marked van arrived on the scene and there was unidentified prisoner in the back of the van. § 87(2)(b) was placed in the back of the van. He was later taken to the 23rd precinct stationhouse, and

eventually taken to Central Booking. § 87(2)(b) added that while PO Greiner interacted with him, an unidentified officer stopped § 87(2)(b) and searched him. § 87(2)(b) recalled that the officer was a Hispanic male, but the majority of the officers who were present are Hispanic males. After § 87(2)(b) was searched, he was instructed to leave.

On September 24, 2007, § 87(2)(b) viewed photographs of officers assigned to the 23rd Precinct SNEU team during the first tour on May 11, 2007 (encl. 3H – 3S). § 87(2)(b) viewed photographic arranged from A1 through A10. § 87(2)(b) did not recognize PO Gilberto Ortiz, PO Joseph Curley, PO Christopher Greiner, PO Brian Moncayo, and Lt. Richard Caban. § 87(2)(b) identified PO David Gonzalez as being present at the location of the incident and interacting with § 87(2)(b). § 87(2)(b) identified PO Christopher Diakonikolas as the officer who searched him and PO Andres Libreros as handcuffing him. § 87(2)(b) recognized PO Brandi Sanchez as being the passenger of the prisoner van.

Results of Investigation

§ 87(2)(b) a § 87(2)(b) black male, was interviewed at the CCRB on August 16, 2007 (encl. 3T – 3W).

On May 11, 2007, at approximately 1:00 AM, § 87(2)(b) exited his residential building, which is located at § 87(2)(b) in Manhattan, as a means to go to the corner store for his mother. The building is also a NYCHA property. § 87(2)(b) could not recall what he was wearing. § 87(2)(b) walked on 102nd Street and was approaching 1st Avenue when he noticed § 87(2)(b) a friend from the neighborhood, walking in his direction. When § 87(2)(b) and § 87(2)(b) were approximately ten feet away from one another, four plainclothes male officers, who were White and Hispanic, jumped out of an unmarked vehicle, which § 87(2)(b) believed was a Caprice or Impala. § 87(2)(b) had not communicated with § 87(2)(b) in any fashion before the officers arrived on the scene. The officers approached § 87(2)(b) and § 87(2)(b) and an officer told them to stop. This particular officer had his hand on his holstered firearm. § 87(2)(b) could not provide a description of this officer, other than he was a male and possibly Hispanic, but he stated that he could possibly recognize a photograph of him. An officer then frisked and searched § 87(2)(b). § 87(2)(b) was uncertain if the same officer who told him to stop was the same officer who frisked and searched him. § 87(2)(b)'s cellular phone, keys, and wallet were removed from his pockets. The officer obtained § 87(2)(b)'s identification card, but § 87(2)(b) could not recall if he gave the officer his ID or if they removed it from his wallet. The officers then gave § 87(2)(b) the items that were in his pocket with the exception of his ID. § 87(2)(b) believed the officers checked his identification. § 87(2)(b) glanced over at § 87(2)(b) and witnessed officers searching § 87(2)(b). § 87(2)(b)'s identification card was returned to him and § 87(2)(b) was instructed to return to his domicile. § 87(2)(b) informed the officers that he was on his way to the store, but the officers insisted that § 87(2)(b) return to his building, which he complied with. When § 87(2)(b) left, the officers were still interacting with § 87(2)(b). § 87(2)(b) articulated that additional units arrived, which included marked cars and a marked van.

On September 28, 2007, § 87(2)(b) viewed photographs of officers assigned to the 23rd Precinct SNEU team during the first tour on May 11, 2007 (encl. 3X – 3AG). § 87(2)(b) viewed photographs arranged from B1 through B10.

§ 87(2)(b) did not recognize PO Andres Libreros, PO Brandi Sanchez, and PO Christopher Greiner. § 87(2)(b) stated that it was possible that PO Joseph Curley, PO Gilberto Ortiz, and PO Christopher Diakonikolas were present at the scene. § 87(2)(b) identified PO Martin Campos, PO Brian Moncayo, PO David Gonzalez, and Lt. Richard Caban as being present at the scene. § 87(2)(b) was unable to identify any of the officers whom he made allegations against.

Identification of Officers Interviewed

§ 87(2)(b)'s arrest report listed PO Diakonikolas as his arresting officer and during § 87(2)(b)'s photographic viewing he identified PO Libreros as the officer who handcuffed him, and he identified PO Gonzalez as the officer who interacted with § 87(2)(b). Therefore, PO Diakonikolas, PO Libreros and PO Gonzalez were interviewed. During PO Diakonikolas's interview he stated that PO Greiner and PO Curley

were the first two officers who were on the scene and they effectuated the stops. Therefore, PO Greiner and PO Curley were interviewed. The officers who were interviewed stated that § 87(2)(b) was stopped because he fit a description of a person who was suspected of engaging in a narcotics transaction, which the observation post conveyed. PO Campos was assigned to the observation post and therefore he was interviewed. Lt. Caban was the supervisor of the SNEU team and according to the arrest report he verified the arrest and therefore he was interviewed.

Officer Interviews

PO Christopher Greiner, a § 87(2)(b) white male with blond hair and blue eyes, was interviewed at the CCRB on May 29, 2008 (encl. 4A – 4B).

PO Greiner did not have his memo book present for his interview, however he believed that he worked the first tour on May 11, 2007. PO Greiner was assigned to the 23rd Precinct Street Narcotics Enforcement Unit and he was working with PO Curley. The officers were in plainclothes and assigned to an unmarked vehicle. PO Greiner was given the fax number to the CCRB at the conclusion of his interview and he agreed to fax a copy of it to the investigator. As of the date of this report, PO Greiner has failed to fax a copy of his memo book.

On May 11, 2007, PO Greiner and PO Curley were assigned to the apprehension vehicle for the 23rd Precinct SNEU team. On this particular date of incident, the observation post was looking for narcotics transactions that were taking place within the vicinity of East 102nd Street. The observation post put over the point-to-point contact radios a description of a person, which PO Greiner could not recall, who was believed to have engaged in a hand-to-hand narcotics transaction. The observation post also relayed the location of the transaction and the suspect's direction of travel. A male, who fit the description that the observation post communicated, was stopped. The arrest report identified the male who was arrested as § 87(2)(b). PO Greiner believed that § 87(2)(b) was with another male who was incidentally stopped because he was with § 87(2)(b) § 87(2)(g). § 87(2)(b) was handcuffed and searched, which resulted in a knife being recovered from his back pocket. § 87(2)(b) was arrested because it was believed that he purchased narcotics. PO Greiner stated that he only had probable cause to arrest § 87(2)(b) and not § 87(2)(b) because the observation posts only conveyed a description for one male, which § 87(2)(b) matched. However, PO Greiner could not specify if § 87(2)(b) was free to leave. PO Greiner did not recall interacting with § 87(2)(b) and PO Greiner was uncertain of what happened to him. PO Greiner could not recall if § 87(2)(b) was asked for identification, frisked, or searched. PO Greiner could not recall if there was a description of a male who was approximately 3'8" that the observation post put over the air on the night of the incident. PO Greiner was certain that the aforementioned description was not the description that was put over the air for § 87(2)(b).

PO Joseph Curley, a § 87(2)(b) white male with black hair and brown eyes, was interviewed at the CCRB on November 29, 2007 (encl. 4E – 4F).

PO Curley worked from 11:35 PM on May 10, 2007 until 8:10 AM on May 11, 2007. PO Curley served as a member of the 23rd Precinct Street Narcotics Enforcement Unit. PO Curley worked with PO Greiner and Lt. Caban was their supervisor. PO Curley believed that he was assigned to one of two unmarked apprehension vehicles and that he was in plainclothes. PO Curley could not specify the make or the model of the vehicle. PO Curley did not have a memo book entry pertaining to this incident (encl. 4C – 4D).

On May 11, 2007, at approximately 1:10 AM, in the vicinity of § 87(2)(b) an officer on the SNEU team who was assigned to the observation post witnessed an individual engage in a drug transaction. The officer who was assigned to the observation post put over the SNEU team's point-to-point radios the clothing description and direction of flight for the perpetrator. PO Curley did not know who was assigned to, or the location of the observation post. The other members of the SNEU team respond to the vicinity of where the transaction occurred. While responding to the vicinity of where the transaction occurred, PO Greiner and PO Curley observed two males who fit the description, which he could not remember, of the male who engaged in the drug transaction. One of the males was on the left side of the street and PO Curley exited the unmarked vehicle and approached the male. PO Greiner continued up the block and stopped the

second male who was on the right side of the street. PO Curley approached the male because the male fit the description that the observation post transmitted. PO Curley stated that he believed that the male that he interacted with was arrested and he thought the male was arrested for drugs. PO Diakonikolas and PO Gonzalez arrived in the prisoner van and the male that he interacted with was placed inside of the van. PO Curley then proceeded down the block to where PO Greiner was. PO Curley did not witness what happened between PO Greiner and the male that he stopped. PO Curley was uncertain if the male that PO Greiner interacted with was frisked, searched, or arrested.

Complaint Report (encl. 4G – 4H)

PO Campos completed the complaint report regarding this incident. § 87(2)(a) 160.50

PO Martin Campos, a § 87(2)(b) Hispanic male with black hair and brown eyes, was interviewed at the CCRB on April 17, 2008 (encl. 4K – 4L).

PO Campos worked from 11:35 PM on May 10, 2007 until 7:30 AM on May 11, 2008. PO Campos was a member of the 23rd Precinct's Street Narcotics Enforcement Unit (SNEU) and he was assigned to the observation post. Other members of the SNEU team included PO Diakonikolas, PO Gonzalez, PO Ortiz, PO Sanchez and Sgt. Skretch. PO Campos could not recall the specific assignments of the other SNEU members on the date of incident. PO Campos was in plainclothes and on the rooftop of a privately owned apartment building near the corner of 102nd Street and 1st Avenue. PO Campos did not have any memo book entries pertaining to this incident (encl. 4I – 4J).

On May 11, 2007, PO Campos was on the rooftop of a building that was located near the corner of 102nd Street and 1st Avenue. PO Campos was assigned to the observation post on the night of the incident and he recalled that he did not put a description of the male who was arrested on this particular night for § 87(2)(a) 160.50. PO Campos stated that the description that he recalled transmitting over the air was for a multiethnic male, approximately 3'9", had braids, and riding on the handlebars of a bike, and that the person was wanted for multiple robberies. PO Campos identified the male as § 87(2)(b)

PO Campos also transmitted the direction of flight, which was towards the FDR, but he lost visual of the perpetrator, § 87(2)(b). PO Campos stated that he did not recall putting a description over the air of a Hispanic male, unless it was of the person who was riding the bike. PO Campos did not recognize the photographs of § 87(2)(b) and § 87(2)(b) and he did not recall if either § 87(2)(b) or § 87(2)(b) was the individual riding the bike. When asked, PO Campos stated that he might have transmitted descriptions of individuals who engaged in narcotics transactions on the day of incident, as it is a drug-prone location, but he could not specifically recall. PO Campos stated that he recalled a male being arrested § 87(2)(a) 160.50, but he never observed that person engage in a narcotics transaction. PO Campos was unaware of how and why the person with the gravity knife was stopped. PO Campos stated that maybe the officers in the chase car, while pursuing the little person, observed the male in possession of the gravity knife do something illegal, but he never witnessed what the male could have done.

Arrest Report (encl. 4M – 4O)

PO Diakonikolas completed the arrest report for § 87(2)(b). The arrest report revealed that on May 11, 2007, § 87(2)(b) was arrested § 87(2)(a) 160.50

PO Christopher Diakonikolas, § 87(2)(b) white male with brown hair and hazel eyes, was interviewed at the CCRB on December 5, 2007 (encl. 4S – 4T).

PO Diakonikolas worked from 11:35 PM on May 10, 2007, until 7:10 AM on May 11, 2007. He was assigned to the 23rd Precinct Street Narcotics Enforcement Unit (SNEU) and worked specifically as a member of the apprehension team. PO Diakonikolas stated that as a member of the apprehension unit he is responsible for locating people who match descriptions that the observation post put over their point-to-point radios. These people are located because they are believed to have engaged in some type of illegal

narcotics transactions or activities. He could not recall what other officers were in the apprehension vehicle with him, but remembered there were two apprehension vehicles on the date of this incident. PO Diakonikolas was in a modified uniform and assigned to an unmarked black Chevrolet Impala. PO Diakonikolas did not have any entries in his memo book pertaining to this incident (4P – 4R).

On May 11, 2007, at approximately 1:30 AM, in the vicinity of § 87(2)(b) in Manhattan the officer assigned to the observation post put over the SNEU team's point-to-point radios a description of a male who had a shiny silver object clipped to the back of his pocket. The observation post was located on the rooftop a building on 1st Avenue and 102nd Street. This particular area was experiencing many illegal activities such as fights and robberies. PO Diakonikolas believed that PO Campos was assigned to the observation post and it was PO Diakonikolas's understanding that PO Campos believed the item in the male's back pocket was a weapon. PO Diakonikolas did not recall the description of the male.

On the night of this incident that there was an additional apprehension vehicle, a black Crown Victoria, and the officers assigned to that vehicle, PO Greiner and PO Curley, stopped the male. When PO Diakonikolas arrived at the location he observed one male in handcuffs, subsequently identified as § 87(2)(b) and two other males, one of which the CCRB identified as § 87(2)(b) speaking with an officer. PO Diakonikolas stated that § 87(2)(b) and the unidentified male were with § 87(2)(b) and the officers wanted to know their relationship to § 87(2)(b) and where they were going. § 87(2)(b) and the other unidentified male were cooperative and PO Diakonikolas did not fear for his safety when he arrived on the scene. PO Diakonikolas did not recall if § 87(2)(b) and the unidentified male were frisked or searched. PO Diakonikolas only interacted with § 87(2)(b) and he informed § 87(2)(b) that he was being arrested § 87(2)(a) 160.50 PO Diakonikolas believed that the knife was recovered prior to him arriving on the scene and he did not witness § 87(2)(b) being frisked or searched. Additionally, PO Diakonikolas recalled that § 87(2)(b)'s clothing was baggy, specifically § 87(2)(b)'s pants, which would enable an individual to see an object sticking out of his back pocket. PO Diakonikolas searched § 87(2)(b) before he was put into the prisoner van. § 87(2)(b) was taken to the 23rd Precinct stationhouse. The other two males' information was obtained and they were allowed to leave. PO Diakonikolas stated that either PO Greiner or PO Curley should have completed a stop, question, and frisk report for the other two males. PO Diakonikolas believed that Lt. Caban came on the scene at some time during the incident. PO Diakonikolas stated that PO Gonzalez was on the scene, but he did not know if PO Gonzalez arrived before or after him and he did not witness PO Gonzalez frisk or search any of the males.

PO David Gonzalez, a § 87(2)(b), bald, with hazel eyes, and § 87(2)(b) Hispanic male, was interviewed at the CCRB on January 30, 2008 (encl. 4U – 4V).

On May 11, 2007, PO Gonzalez worked from 2:00 PM until 10:35 PM, and he was assigned to the 23rd Precinct's Street Narcotics Enforcement Unit (SNEU). On the date of the incident, PO Gonzalez and PO Diakonikolas were assigned to the prisoner van. PO Gonzalez articulated that members of the Anti-Crime Team filled in because the SNEU team was short a few members. PO Gonzalez did not have his memo book present for his CCRB interview; however, he recalled the incident. PO Gonzalez agreed to fax a copy of his memo book to the CCRB at the conclusion of his interview. However, as of the date of this report he has failed to do so.

On May 11, 2007, a transmission was placed over the air for the prisoner van to respond to § 87(2)(b) because there was an arrest. When PO Gonzalez arrived on the scene, the male who was subsequently identified as § 87(2)(b) was handcuffed. PO Gonzalez stated that he believed that another male was stopped, but that male was not in handcuffs and he was approximately twenty feet away from § 87(2)(b). PO Gonzalez did not recall why the males were stopped. PO Gonzalez and PO Diakonikolas exited the van. PO Diakonikolas went to get § 87(2)(b) and escorted him to the prisoner van. PO Diakonikolas then frisked § 87(2)(b) and placed him inside of the prisoner van. PO Gonzalez did not recall if there were any other prisoners in the van. § 87(2)(b) asked PO Gonzalez if he could get a desk appearance ticket and § 87(2)(b) was informed that his name needed to be checked before that could be done.

PO Andres Libreros, a § 87(2)(b), bald, with brown eyes, § 87(2)(b) Hispanic male, was interviewed at the CCRB on December 4, 2007 (encl. 4Y – 4Z).

PO Libreros worked from 11:35 PM on May 10, 2007, until 7:10 AM on May 11, 2007. He was assigned as a member of the 23rd Precinct's Street Narcotics Enforcement Unit (SNEU) and has been a member for the past two years. PO Libreros was specifically assigned to the prisoner van on the date of the incident, but he could not recall what other officers were with him in the prisoner van. PO Libreros was uniformed and he was assigned to marked van. Lt. Caban was the supervisor of the 23rd Precinct's SNEU team. PO Libreros did not have any memo book entries pertaining to this incident (encl. 4W – 4X).

PO Libreros stated that he was familiar with § 87(2)(b) and that it was a drug-prone location. He also acknowledged that this location is within the confines of the 23rd Precinct. PO Libreros did not recall patrolling this particular location on the date of incident and he did not remember what areas were patrolled. PO Libreros did not recognize the photograph of § 87(2)(b). PO Libreros stated during SNEU operations the prisoner van is always a few blocks from the apprehension unit and that the prisoner van does not come on the scene of an incident until the apprehension team puts over the air an arrest. PO Libreros articulated that the only time that he interacts with prisoners is when they are brought to the van and he takes their information down and vouchers any property or contraband that they may have had in their possession. PO Libreros did not recall vouchering any gravity knives on the date of incident.

Lt. Richard Caban, a § 87(2)(b) Hispanic male with black hair and brown eyes, was interviewed at the CCRB on July 2, 2008 (encl. 4AA – 4AB).

Lt. Caban did not have his memo book present for his interview. Lt. Caban could not specify what hours he worked on May 11, 2007, but he knew that it was during the first tour. Lt. Caban was assigned as the patrol supervisor of the 23rd Precinct Street Narcotics Enforcement Unit. Lt. Caban was in plainclothes and assigned to an unmarked vehicle. Lt. Caban did not recall who was in the vehicle with him. Lt. Caban stated that he checked his memo book prior to his interview and he did not have any entries, as he was serving in an administrator role.

Lt. Caban did not recall this incident, but he remembered that he was in the field with the SNEU team. Lt. Caban articulated that on the morning of May 11, 2007, that he supervised eight arrests. Lt. Caban did not recall supervising an arrest that occurred in the vicinity of § 87(2)(b) and did not remember being at the location or any transmissions that would have placed him at the above location. Lt. Caban also did not remember supervising any arrests that were made for § 87(2)(a) 160.50 on the date of incident. Lt. Caban stated that none of the arrests that were made stood out. Lt. Caban could not specifically recall any transmissions being put over the point-to-point radios for any narcotics transactions in this vicinity. Lt. Caban stated that he was familiar with the little person § 87(2)(b) but he could not remember if there were any radio transmissions pertaining to him on the date in question. Lt. Caban could not also remember if there were any transmissions for a person § 87(2)(a) 160.50 on May 11, 2007.

Police Documents

Property Vouchers (encl. 5A)

§ 87(2)(a) 160.50

Command Log (encl. 5B)

There was an entry in the command log pertaining to § 87(2)(b) which evinced that at on May 11, 2007, at approximately 2:15 AM, § 87(2)(b) was brought into the 23rd Precinct stationhouse and his physical condition was apparently normal.

Prisoner Holding Pen Roster (encl. 5C)

The 23rd Precinct Prisoner Holding Roster evinced that on May 11, 2007, at 2:15 AM, § 87(2)(b) was placed inside of the holding pen and at 7:40 AM he was taken to Manhattan Central Booking.

Stop, Question and Frisk Log (encl. 5D)

The 23rd Precinct stop, question, and frisk log did not have an entry for § 87(2)(b)

Roll Call (encl. 5E)

The 23rd Precinct first tour roll call for May 11, 2007, confirmed that PO Greiner, PO Curley, PO Diakonikolas, PO Libreros, PO Campos, and PO Gonzalez were working and assigned to the SNEU team. The other members of the team who were working included PO Ortiz, PO Sanchez, PO Moncayo, and Lt. Caban.

History of Criminal Convictions (encl. 7A – 7L)

§ 87(2)(b)

Officers' CCRB Histories (encl. 1A)

During his six-year tenure, PO Greiner does not have any substantiated CCRB allegations on his record. In May of 2007, the NYPD imposed the penalty of instruction on PO Curley pursuant to CCRB case 200513891, in which the board substantiated an abuse of authority allegation, refusal to provide name and shield number. PO Curley does not have any additional substantiated CCRB allegations on his record during his seven-year tenure.

§ 87(2)(b) s CCRB History (encl. 2A)

§ 87(2)(b) does not have any other complaints filed with the CCRB.

Conclusions and Recommendations**Identification of Subject Officers**

§ 87(2)(b) alleged that an officer stopped and frisked him. § 87(2)(b) stated that this same officer removed the knife from his pocket. § 87(2)(b) viewed photographs of the officers who were assigned to the 23rd Precinct SNEU team for the date and time of the incident, and he identified PO Diakonikolas as the officer who searched him. § 87(2)(g)

§ 87(2)(b) alleged that an officer stopped and searched him. However, § 87(2)(b) was unable to provide a description of the officer who allegedly stopped and searched him other than the officer being a male and possibly Hispanic. § 87(2)(b) stated that he would probably be able to recognize a photograph of the officer. § 87(2)(b) was shown photographs of the officers who were assigned to the 23rd Precinct SNEU team, which the investigation determined were the only officers involved in this incident. § 87(2)(b) was unable to definitively identify the officer who stopped and searched him. Not only was he incapable of identifying the officer who searched him, but he also failed to recognize any of the officers who responded to the incident. § 87(2)(g)

§ 87(2)(b) PO Gonzalez recalled that § 87(2)(b) was stopped when he arrived on the scene and that § 87(2)(b) was

handcuffed. PO Gonzalez stated that he did not interact with § 87(2)(b). The officers who were able to provide a statement regarding this incident admitted that there was another male with § 87(2)(b) but none of them admit to interacting or witnessing any other officer interact with the other male, § 87(2)(b). § 87(2)(g)

PO Curley admitted to stopping an individual who was involved in this incident, but he maintained that the person he stopped was arrested. The only person arrested in this incident was § 87(2)(b). § 87(2)(g)

Undisputed Facts

It is undisputed that on May 11, 2007, § 87(2)(b) and § 87(2)(b) were stopped in the vicinity of § 87(2)(b) in Manhattan. It is also undisputed that § 87(2)(b) was arrested § 87(2)(a) 160.50.

Disputed Facts

§ 87(2)(g)

Assessment of Evidence

As § 87(2)(b) was walking to speak to § 87(2)(b), PO Greiner stopped and frisked him. PO Greiner articulated during his CCRB interview that he stopped § 87(2)(b) because he matched the description of a person who engaged in a narcotics transaction, as transmitted by the officer who was assigned to the observation post, § 87(2)(g). PO Greiner stated that he handcuffed § 87(2)(b) and then searched him. § 87(2)(g). PO Diakonikolas articulated that the observation posts transmitted that § 87(2)(b) had a shiny metallic object hanging out of his pocket and that it could possibly be a weapon. However, PO Campos, who was assigned to the observation post, articulated that he never transmitted the description of the person, who the CCRB identified as § 87(2)(b) who was arrested § 87(2)(a) 160.50 on the night the incident. PO Campos stated that he did not observe § 87(2)(b) engage in a narcotics transaction. PO Campos further articulated that he put a description of a little person who was riding on the handlebars of a bicycle and that it was possible that the male who was arrested § 87(2)(a) 160.50 was the person riding the bicycle. § 87(2)(g)

PO Greiner did not admit to frisking § 87(2)(b) and based upon PO Greiner's statement he believed that he had probable cause to arrest § 87(2)(b) which would justify a frisk or search of § 87(2)(b). § 87(2)(g)

§ 87(2)(b) could not provide a description of the officer who stopped and searched him. § 87(2)(b) stated that he would probably be able to recognize a photograph of the officer. § 87(2)(b) was shown photographs of the officers who were assigned to the 23rd Precinct SNEU team. § 87(2)(b) was unable to definitively identify the officer who stopped and searched him. PO Curley admitted to stopping an individual who was stopped in this incident, but he maintained that the person he stopped was arrested. The only person arrested in this incident was § 87(2)(b) and the officer who stopped and searched § 87(2)(b) was PO Greiner. § 87(2)(g)

Allegation A: PO Christopher Greiner stopped § 87(2)(b)

Allegation B: PO Christopher Greiner frisked § 87(2)(b)

Allegation C: PO Joseph Curley stopped § 87(2)(b)

Allegation D: PO Joseph Curley searched § 87(2)(b)

PO Greiner stated that he stopped § 87(2)(b) because he matched the description of a person who engaged in a narcotics transaction, as relayed over the point-to-point radios by the observation post. PO Campos, who was assigned to the observation post, denied transmitting a description of § 87(2)(b) and he stated that he recalled § 87(2)(b)'s arrest and he did not observe § 87(2)(b) engage in a narcotics transaction. PO Diakonikolas stated that § 87(2)(b) was stopped because he had a shiny metallic object hanging out of his back pocket. § 87(2)(g)

§ 87(2)(b) also alleged that PO Greiner frisked him and § 87(2)(b) alleged that he was searched. § 87(2)(g)

It is therefore recommended that allegations A, B, C, and D be closed as **unsubstantiated**.

Allegation E: PO Christopher Greiner searched § 87(2)(b)
When PO Greiner asked § 87(2)(b) if he had anything that he was not supposed to have, § 87(2)(b) responded by informing PO Greiner that he had a knife in his pocket. PO Greiner immediately seized the knife from § 87(2)(b)'s pocket out of reasonable concern for his safety. § 87(2)(g)

it is recommended that allegation E be closed as **exonerated**.

Investigator:

Kenny Robinson, Jr.

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: